

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARLON HUDSON, JASSEEM McCLEOD,
NKOSI SOLOMON,

SUMMONS

Index No.:
Date Purchased:

Plaintiffs,
-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JAMES
FOWLER, SHIELD # 03099, POLICE OFFICER BROOKS
AND POLICE OFFICERS JOHN DOE #1-#5,
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES
ARE UNKNOWN) ALL OFFICERS ARE SUED
INDIVIDUALLY AND IN THE CAPACITIES AS POLICE
OFFICERS, ALL OFFICERS ARE BELIEVED TO BE FROM
THE 73rd PCT.,

Plaintiffs designate Kings
County as the Place of trial.
The basis of venue is Kings
County is the place where the
cause of action arose.

Defendants,

-----X
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 29, 2021

/s/ ROYCE RUSSELL, ESQ.
ROYCE RUSSELL, ESQ.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiffs
112 West 34TH Street #18 Fl.
New York, New York 10120
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer James Fowler
Shield # 03099
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officer Brooks
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officer John Doe # 1-#5
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARLON HUDSON, JASSEEM McLEOD,
NKOSI SOLOMON,

VERIFIED COMPLAINT

Index No.

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JAMES
FOWLER, SHIELD # 03099, POLICE OFFICER BROOKS
AND POLICE OFFICERS JOHN DOE #1-#5,
(FICTITIOUS NAMES BECAUSE THEIR IDENTITIES
ARE UNKNOWN) ALL OFFICERS ARE SUED
INDIVIDUALLY AND IN THE CAPACITIES AS POLICE
OFFICERS, ALL OFFICERS ARE BELIEVED TO BE FROM
THE 73rd PCT.,

Defendants,

-----X

Plaintiffs, Marlon Hudson, Jasseem McLeod, and Nkosi Solomon by their Attorney,
R-SQUARE, ESQ PLLC. as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY" was and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned the defendant, the City of New York, hereinafter certified to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, and the New York City Department of Corrections hereinafter respectively referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief, Police Officer Fowler, Shield # 03099, hereinafter referred to as "Fowler" at all times hereinafter mentioned, and on the 16th day of May 2021 was

employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

4. Upon information and belief, Police Officer Brooks, hereinafter referred to as “Brooks” at all times hereinafter mentioned, and on the 16th day of May 2020 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
5. Upon information and belief, John Doe #1-5, hereinafter referred to as ‘Does’ named herein in a fictitious capacity as their identities are presently unknown all times hereinafter mentioned, and on the 16th day of May, 2021 were employed as Police Officers by the “CITY” and/or “NYPD”, was assigned to the 73rd pct. and at all relevant times set forth below acted in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
6. Hereinafter, the police officers present at the location set forth below are collectively referred to as “Officers”.
7. The incident set forth below occurred at the location of 375 Amboy Street, Brooklyn, New York, County of Kings within the State of New York hereinafter referred to as “the location”, at approximately 11:40 p.m.
8. At all relevant times hereinafter mentioned, Plaintiff Marlon Hudson., hereinafter referred to as “Hudson” was a resident of Kings County, residing at 806 Thomas Boyland Street, Brooklyn, New York 11212.
9. At all relevant times hereinafter mentioned, Plaintiff Jasseem McLeod hereafter referred to as “McLeod” was a resident of Kings County, residing at 557 Watkins Street, Brooklyn, New York 11212.

10. At all relevant times hereinafter mentioned, Plaintiff, Nkosi Solomon, hereinafter referred to as “Solomon” was a resident of Kings County, residing at 359 Amboy Street, Brooklyn, New York 11212.
11. Hudson, McLeod and Solomon shall hereinafter collectively be referred to as the “Plaintiffs”.
12. The Plaintiffs have each individually filed Notices of Claim advising of the nature of their claims. The Plaintiffs have each submitted to a 50-h hearing.
13. The Defendants have not offered to settle the Plaintiffs’ claims.
14. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

15. On May 16, 2020 at approximately 11:40 p.m., the “Plaintiffs” were at the “location” of 375 Amboy Street, Brooklyn, New York when they observed Defendants/Officers arrived at said location in unmarked police cars.
16. At the time of the Defendants/Officers arrival, the Plaintiffs were unsure that they were police officers because their shields were not visible and they were not wearing any police apparel.
17. Solomon was lawfully at 375 Amboy Street visiting a friend when he observed his friends, Hudson and McLeod being attacked by Defendants/Police Officers.
18. Solomon was at the private house located at 375 Amboy Street with the intentions of staying the night as he observed his friends being kicked, punched and threatened by at least five (5) unknown males who later revealed themselves as Police Officers.
19. Solomon was ordered to “Get down on the floor, before we hurt you”. He also heard the Defendants/Officers say, “Taser that one he is going to try to escape”. Solomon was not

running or walking away but remained still and watch his friends being battered and assaulted.

20. Solomon observed Defendant/Officer-Doe #1 on top of Hudson, stepping on Hudson's back. Solomon was then asked, "Do you have a gun"?
21. Solomon responded, "No," as his hands were raised in the air which completely exposed his waist area revealing he had no gun. At this time, another Defendant/Police Officer-Doe #2 ran towards Solomon and grabbed his shirt and chest area and punched him in the mouth.
22. Solomon was punched two (2) more times in his mouth/face area as he heard, "Get him on the floor".
23. Solomon then received two (2) kicks to his right leg and two (2) kicks to his left leg as he was thrown to the ground. While Solomon was on the ground he asked, "What did I do?" for which he was punched in the right ear and right rib cage area. Solomon then remained silent as the Defendant/Officer stood with his foot on his back yelling "Round them up, tase them if you have too".
24. Solomon was then dragged to a vehicle and transported to the 73rd precinct as he was ignored when asked why he was being arrested.
25. At the 73rd pct., Solomon was searched again and forced to remove his sneakers.
26. The Defendants/Police Officers confiscated Solomon and the other Plaintiffs' sneakers and forced them to remain barefoot while detained.
27. Plaintiffs were forced to remain barefoot as they stood in a contaminated holding cell filled with urine and feces for 16 hours.
28. Defendants/Officers confiscated Plaintiffs' masks used as protection from COVID-19.

29. Plaintiffs were eventually fingerprinted, photographed and transported to Central Bookings.
30. Plaintiffs were illegally detained at Central Bookings for approximately 2-3.5 hours before they were released with no criminal charges filed.
31. Plaintiff-Solomon then proceeded to the 73rd pct. to retrieve his cell phone which he discovered was damaged by the Defendants/Officers .
32. Plaintiffs all sought medical treatment as a result of being battered and assaulted by the Defendants/Officers.
33. McCleod who was lawfully present at 375 Amboy Street observed Solomon and Hudson illegal stop, seizure, battery and assault.
34. McLeod observed the Defendants'/Officers' misconduct and from a distance of approximately ten (10) feet or more as he asked, "What did my friends do?".
35. At that time, another Defendant/Officer #3 intervened by blocking McLeod's view and pointing a Taser at McLeod while ordering him to back up.
36. McLeod complied but continued to ask, "What did my friends do wrong?".
37. The Defendant/Officer #3 did not respond but continued to approach McLeod as McLeod continued to back away. As McLeod was walking away, another Defendant/Officer #4 grabbed McLeod and pushed him back further. McLeod then proceeded to enter the gated area of 375 Amboy Street voluntarily when an unknown Defendant/Officer #5 ran toward him with his gun un-holstered and punched him in the face. The unknown Defendant/Officer #5 attempted to throw McLeod to the ground.
38. McLeod suffers from back issues and he explained that to the Defendant/Police Officer #5 who was attempting to tackle him.

39. The Defendant/Officer #5 continued to use excessive force. Defendant/Officer #5 and other Defendants/Officers threw McLeod to the ground as McLeod heard someone say, "This one goes".
40. McLeod recalls the Defendant/Officer #5 who tackled and assaulted him from an earlier incident in that day whereupon he called that Defendant/Officer #5 unprofessional for harassing and antagonizing an intoxicated African American male from the neighborhood.
41. Defendant/Officer #5's name is Fowler. As McLeod laid on the concrete, Fowler kicked and kned him until he stopped asking why he was being arrested.
42. McLeod remained silent after being kicked in the groin. McLeod was placed in Fowler's car as Police Officer Fowler and other Defendants/Officers verbally taunted McLeod.
43. McLeod was seated handcuffed in the police vehicle as he continued to ask why he was being arrested. Defendants/Officers did not respond, rather another Defendant/Officer flipped his middle finger implying "Fuck you".
44. This unprofessional gesture occurred as McLeod was threatened with a Taser. McLeod was eventually transported to the 73rd pct. whereupon he was held for approximately 16-18 hours. While detained, Hudson was informed by Defendant/Officer Brooks that there was a shooting. However, the shooting was nowhere near where the Plaintiffs were located. Plaintiffs were intentionally held per the transport book, "late bus at 3:00". Plaintiffs were finally transported to Central Bookings whereupon they were held for 2-3.5 hours before being released with no criminal charges filed.
45. McLeod suffered the same mistreatment while detained as Solomon.
46. Hudson was lawfully at the above location with his friends Solomon and McLeod when he observed cars from different directions approach where he was standing. Hudson was standing behind the gate of his friend's private house.

47. Hudson was then stopped by 3 to 4 males in plainclothes with guns un-holstered and running towards him and his friends. Defendants/Officers were yelling, "Get them all, round them up," as they illegally detained the Plaintiffs.
48. Hudson held his hands/arms in the air as he asked what was/is going on.
49. Hudson was then punched in the eye while a Taser was pointed in his face. Hudson voluntarily laid on the ground. As Hudson was going to the ground, he was punched about the body and stomped in his back repeatedly.
50. Hudson was stomped repeatedly as he asked what he did wrong. Some Defendants/Officers, at that time were yelling, "Stop resisting" and the more Hudson spoke the more he was assaulted.
51. Hudson, while on the ground, watched Plaintiffs McLeod and Solomon get assaulted. Hudson while on the ground also noticed that only the taller of the people were being targeted. Hudson is 6'4 feet tall; McLeod is 6'5 feet tall and Solomon is 6'7 tall and they were the only people battered, assaulted illegally detained and arrested.
52. Hudson was eventually transported to the 73rd precinct. Hudson asked what he was being charged with, however, he received no response. Eventually, one of the Defendants/Officers said, "I can make the charges up now," and then said, "Disorderly Conduct and Obstruction of Governmental Administration."
53. Defendants/Officers threw Hudson into a cage as he was searched again. During this search, Hudson's groin was felt and he was inappropriately searched as he was told, "You're tough in the streets but a Pussy in the Pct."
54. Defendants/Officers then continued to mock Hudson and refused to grant Hudson a phone call. Hudson was detained in a cell filled with feces, urine, old food and roaches.
55. Hudson was fingerprinted, photographed and was refused medical treatment as well as denied a medical mask to prevent him from contracting COVID-19. During his illegal detention for 16 hours, Hudson was barefoot and bleeding from the back of his mouth.

56. Hudson was spitting blood as he was refused medical treatment. Hudson suffered the same mistreatment as did Solomon and McLeod while illegally detained.
57. Hudson was held in Central Booking for the same allotment of time as Solomon and McLeod before being released and not criminally charged.
58. Solomon, McLeod and Hudson assert that Defendants/Officers Fowler, Brooks and John Doe #1-#5 were all responsible and involved in the violations of their rights including but not limited to battery, assault, false detention, false imprisonment, false arrest, illegal search and seizure, use of excessive force and civil right violations.
59. It is hereby alleged, pursuant to CPLR § 1603, that this action is exempt from the operation of CPLR § 1601 from the operation of CPLR § 1601, by reason of one or more of the exemptions provided in CPLR § 1602.

**AS AND FOR A FIRST THROUGH THIRD CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT/DETENTION/ARREST ON
BEHALF OF THE PLAINTIFFS EACH WITH A CAUSE OF ACTION
RESPECTIVELY ALLEGES:**

60. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.
61. That on the 16th day of May 2020, at the approximate hours of 11:40 p.m., the Defendants, and their agents, servants and/or employees intentionally held, detained, imprisoned and/or arrested the Plaintiffs without any just cause or grounds thereof.
62. Each of the said Plaintiffs was held against his will under full force of arms.
63. Each Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his false detention, imprisonment and/or arrest by the Defendants, their agents, servants and/or employees and was forced to submit to having his freedom restricted and said imprisonment entirely against his will.

64. That the Defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine each of the Plaintiffs' movement and freedom; each of the Plaintiffs was conscious of his confinement; each of the Plaintiffs did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.
65. That by reason of the aforesaid false imprisonment and/or arrest of each of the Plaintiffs was subjected to great indignity, humiliation, pain and great distress of mind and body, and said Plaintiffs have been otherwise damaged.
66. That by reason of the aforesaid, the Plaintiff, Solomon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
67. That by reason of the aforesaid, the Plaintiff, McLeod, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
68. That by reason of the aforesaid, the Plaintiff, Hudson, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH THROUGH THE SIXTH CAUSES OF ACTION ON BEHALF
OF ALL PLAINTIFFS AGAINST ALL DEFENDANTS FOR BATTERY AND ASSAULT
EACH PLAINTIFF ALLEGES:**

69. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.
70. That commencing on the 16th day of May 2020 at the approximate hours of 11:40 p.m. at the "the location", the Defendants/Officers, and upon information and belief, other Defendants/Officers presently unknown, were acting within the scope of their employment as police officers and as agents for the defendant the "CITY" and "NYPD", without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, and violated each Plaintiffs' civil rights.

71. Upon information and belief, the officers had absolutely no reason or just cause to falsely detain, imprison, arrest, batter, assault, or violate each Plaintiffs' civil rights.
72. The battery and assault and physical contact was not privileged.
73. The battery and assault took place while the Plaintiffs had committed no crime.
74. That the defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent, harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiffs.
75. That said acts caused apprehension of such offensive contact to each of the Plaintiffs, and the Defendants/Officers caused such battery and assault in and about his body and limbs.
76. That by reason of the aforesaid intentional battery and assault, each Plaintiff suffered offensive contact and/or psychological injuries to his body and mind, and that each was otherwise damaged.
77. That by reason of the aforesaid, the Plaintiff, Solomon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
78. That by reason of the aforesaid, the Plaintiff, McLeod, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
79. That by reason of the aforesaid, the Plaintiff, Hudson, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A SEVENTH THROUGH NINTH CAUSES OF ACTION AGAINST ALL
NAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS AND
INDIVIDUALLY FOR EXCESSIVE FORCE - 42 U.S.C. 1983 VIOLATIONS
EACH OF THE PLAINTIFFS ALLEGE:**

80. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "79" with the same force and effect as if more fully and at length set forth herein.
81. By the aforesaid acts, the Defendants/Officers individually and collectively have violated each Plaintiffs' right: to privacy under the First and Fourteenth Amendments, to have their homes and persons be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race and excessive force thereby giving rise to a cause of action pursuant to 42 USC 1983.
82. The conduct and actions of the named Defendants/Officers, were acting under color of law, in seizing each Plaintiff; battering and/or assaulting each Plaintiff; threatening the Plaintiffs; falsely imprisoning, falsely arresting, and upon information and belief in searching each Plaintiff; and using police equipment inappropriately were all done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts and done without lawful justification designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq. Each Defendant/Officer used excessive and unwarranted force.
83. Each of the Defendants/Officers individually and collectively deprived each Plaintiff of his rights including, but not limited to the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.
84. That by reason of the aforesaid, Solomon, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages,

costs, Attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

85. That by reason of the aforesaid, McLeod, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, Attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

86. That by reason of the aforesaid, Hudson, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, Attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TENTH THROUGH TWELVETH
CAUSES OF ACTION FOR NEGLIGENCE AGAINST THE "CITY"
EACH OF THE PLAINTIFFS ALLEGE

87. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "86" with the same force and effect as if more fully and at length set forth herein.

88. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendants named herein.

89. That as a result of their negligence, the above-named Plaintiffs were falsely imprisoned, falsely arrested, illegally seized, illegally searched, battering, assaulting and had their constitutional and civil rights violated.

90. That by reason of the aforesaid, the Plaintiff, Solomon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

91. That by reason of the aforesaid, the Plaintiff, McLeod, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

92. That by reason of the aforesaid, the Plaintiff, Hudson, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRTEENTH THROUGH FIFTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 and 1988, AGAINST THE DEFENDANTS FOR
FAILING TO INTERVENE AND MITIGATE AND FOR VIOLATING PLAINTIFFS'
RIGHT TO EQUAL PROTECTION UNDER THE LAW

93. That Plaintiffs repeat, reiterate and realign each and every allegation contained in paragraphs marked "1" through "92" with the same force and effect as if more fully and at length set forth herein.

94. That at all times hereinafter mentioned, and on May 16, 2020, Defendants/Officers were employed by the defendant The City of New York, and/or The New York City Police Department, and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.

95. That at all times, Defendants/Officers were acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.

96. That during all times hereinbefore and hereinafter mentioned, Defendants/Officers acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiffs, and deprived them of the rights, privileges and immunities secured to them by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.

97. That on the date, time and location, the Plaintiffs were lawfully walking and exercising their First Amendment rights when confronted by the Defendants/Officers.
98. That the Plaintiffs were not interfering with the Defendants/Officers' official functions.
99. That the named Defendants/Officers were acting in concert with each other and used excessive/unwarranted physical force against the plaintiffs in that the plaintiffs were battered and assaulted and had their 4th Amendment Rights violated.
100. That upon information and belief, the Defendants/Officers were present during said conduct, observed said conduct, had the ability to stop and/or mitigate said conduct and elected not to do so, causing injury to the Plaintiffs.
101. That upon information and belief, the Defendants/Officers failed to report said misconduct of their fellow officer, and/or failed to provide the Plaintiffs with equal protection under the law.
102. That as a direct proximate result of the defendants' actions, the Plaintiffs were subjected to physical injury, and subsequent arrest and confiscation of property.
103. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum of exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named Defendant, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTEENTH THROUGH EIGHTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, 1988, BY “THE DEFENDANTS/OFFICERS”, IN
THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK

104. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "103" with the same force and effect as if more fully and at length set forth herein.

105. That at all times hereinafter mentioned, the Defendants/Officers were employed by the defendant The City of New York and/or The New York City Police Department and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

106. That at all times, the Defendant/Officers were acting pursuant to orders and directives from defendant, “City”.

107. That during all times hereinafter mentioned, the Defendants/Officers acted under the color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the “City” and/or New York City Police Department and that “the Officers” were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiffs, and deprived them of their rights, privileges and immunities secured to them by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.

108. That the unlawful and illegal conduct of the defendants deprived Plaintiffs of their following rights, privileges and immunities secured to them by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiffs to be secure in their person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of Plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
- c) The right not to be subjected to cruel and unusual punishment; and
- d) The right to freedom of speech;
- e) The right to Due Process of Law.

109. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of Plaintiffs' persons, destruction of evidence, falsification of evidence and/or reports, false arrest and false imprisonment, assault and battery, malicious prosecution, engaging in a cover-up, and threatening the plaintiffs, the defendant "officers" violated the Plaintiffs' rights and privileges as provided to them in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto. The City defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. §1983.

110. That as a direct proximate result of the Defendants'/Officers' actions, the Plaintiffs were subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

111. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, by the actions of the Defendants/Officers, individually and collectively.

112. That by reason of the aforesaid, the Plaintiffs, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages,

costs, attorneys' fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the thirteenth causes of action, plus Attorney's fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
April 29, 2021

/s/ ROYCE RUSSELL, ESQ.
Royce Russell, Esq.
Attorney for the Plaintiffs
R-SQUARE, ESQ. PLLC
112 West 34th Street #18 Fl,
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney duly admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorney of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
April 29, 2021

/s/ ROYCE RUSSELL, ESQ.
By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARLON HUDSON, JASSEEM McLEOD, NKOSI SOLOMON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JAMES FOWLER, SHIELD # 03099, POLICE OFFICER BROOKS AND POLICE OFFICERS JOHN DOE #1-#5, (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN) ALL OFFICERS ARE SUED INDIVIDUALLY AND IN THE CAPACITIES AS POLICE OFFICERS, ALL OFFICERS ARE BELIEVED TO BE FROM THE 73rd PCT.,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorney for Plaintiff
112 West 34TH Street Fl. 18
New York, NY 10120
(718) 785-8890

To:	City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Police Officer Fowler Shield # 03099 c/o 73 rd Precinct 1470 East New York Avenue Brooklyn, NY 11212	Police Officer Brooks c/o/ 73 rd Precinct 1470 East New York Avenue Brooklyn, NY 11212
	The New York City Police Department 1 Police Plaza New York, New York 10007	Police Officer John Doe #1-#5 c/o 73 rd Precinct 1470 East New York Avenue Brooklyn, NY 11212	

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 29, 2021

Signature

/s/ ROYCE RUSSELL, ESQ.
Royce Russell, Esq.

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PLEASE TAKE NOTICE

- [] NOTICE OF ENTRY
that the within is a (certified) true copy of a _____ duly entered in the office of the
clerk of the within named court on _____
- [] NOTICE OF SETTLEMENT
that a _____ of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on _____